Appendix—Public Land Orders

[Public Land Order 1307]

NEW MEXICO

PARTIALLY REVOKING EXECUTIVE ORDERS NO. 6276 OF SEPTEMBER 8, 1933 AND NO. 6583 OF FEBRUARY 3, 1934, WHICH WITHDREW LANDS TO AID THE STATE OF NEW MEXICO IN MAKING EXCHANGE SELECTIONS

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910, c. 421 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Orders No. 6276 of September 8, 1933, and No. 6583 of February 3, 1934, withdrawing public lands to aid the State of New Mexico in making exchange selections, which were partially revoked by Public Land Order No. 1247 of November 4, 1955, are hereby revoked so far as they affect the following-described lands:

In Executive Order No. 6276

[1500537]

NEW MEXICO PRINCIPAL MERIDIAN

T. 9 S., R. 7 W.,
Sec. 14, SW¼NW¼, N½SW¼, and SE¼SW¼;
Sec. 15, E½NE¼ and SW¼SE¼;
Sec. 22, SE¼ and N½SW¼.
T. 22 S., R. 7 W.,
Sec. 34, lots 1 and 2.

In Executive Order No. 6583

[1506978]

T. 31 S., R. 18 W.,
Sec. 5, NW¼;
Sec. 6, SE¼SE¼, W½SE¼, and SE¼SW¼.

The areas described aggregate 901.28 acres.

The restored lands are too rough and mountainous for cultivation, but they have limited value for grazing.

No application for the restored lands may be allowed under the homestead, desert-land, small tract, or any other non-mineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

Subject to any valid existing rights and the requirements of applicable law, the restored lands are hereby opened to filing of applications, selections, and locations in accordance with the following:

a. Applications and selections under the non-mineral public-land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the homestead, desert land, and small tract laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284 as amended), presented prior to 10:00 a. m. on July 28, 1956, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m. on October 27, 1956, will be governed by the time of filing.

(3) All valid applications and selections under the non-mineral public-land laws, other than those coming under paragraphs (1) and (2) above, presented prior to 10:00 a. m. on October 27, 1956, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

b. The lands have been open to applications and offers under the mineral-leasing laws, and to location for metalliferous minerals. They will be open to location for non-metalliferous minerals under the United States mining laws beginning at 10:00 a. m. on October 27, 1956.

Persons claiming veterans preference rights must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Sante Fe, New Mexico.

WESLEY A. D'EWART,
Assistant Secretary of the Interior.

JUNE 22, 1956.

[F. R. Doc. 56–5097; Filed, June 27, 1956; 8:48 a. m.]

[Public Land Order 1308]

[1338665]

NEVADA

PARTIALLY REVOKING EXECUTIVE ORDER NO. 5105 OF MAY 3, 1929, WHICH WITHDREW CERTAIN LANDS PENDING DETERMINATION AS TO ADVISABILITY OF INCLUDING THEM IN NATIONAL MONUMENT

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 5105 of May 3, 1929, which temporarily withdrew certain lands in Nevada pending determination as to the advisability of including them in a national monument, is hereby revoked so far as it affects the following-described lands:

That area of unsurveyed land east of Timber Mountain bounded on the north by latitude 37°10'20", on the south by latitude 37°77'46", and lying between meridians of longitude 116°20'16", and 116°23'28", comprising an area nine square miles and including what is known as Fortymile Canyon Pueblo.

The released lands are withdrawn, with other lands, by Executive Order No. 8578 of October 29, 1940 and No. 9019 of January 12, 1942, for use of the Department of the Army as an aerial gunnery and bombing range.

WESLEY A. D'EWART,
Assistant Secretary of the Interior.

JUNE 22, 1956.

[F. R. Doc. 56–5098; Filed, June 27, 1956; 8:48 a. m.]

TITLE 36—PARKS, FORESTS, AND MEMORIALS

Chapter I—National Park Service, Department of the Interior

PART 1—GENERAL RULES AND REGULATIONS

LIMITATIONS ON SPEED

Paragraph (a) of §1.42, entitled *Limitations on speed*, is amended to read as follows:

§ 1.42 *Limitations on speed.* (a) Limitations on speed of vehicles except in emergencies as provided in paragraph (b) of this section are as follows:

(1) Basic speed rule:

(i) No person shall drive a vehicle upon a highway at a speed greater than is reasonable and prudent, having due regard to the traffic, surface and width of the highway, the hazard at intersections, and any other condition then existing.

(ii) No person shall drive at a speed which is greater than will permit the driver to exercise full control of the vehicle and to decrease speed or to stop as may be necessary to avoid colliding with any person, vehicle, or other conveyance on or entering the highway in compliance with legal requirements and with the duty of drivers and other persons using the highways to exercise due care.

(2) 15 miles per hour:

(i) In all campgrounds, parking areas, and places of public assemblage.

(ii) Upon that portion of the highway which passes through or borders upon a scene of emergency such as forest fires, highway repairs or construction, automobile accidents, or simliar emergency.

(iii) In any business or residence area.

(iv) Upon approaching within 50 feet and in traversing an intersection of highways where the driver's view in either direction along any intersecting highway within a distance of 200 feet is obstructed, except that when travelling upon a through highway or at a traffic controlled intersection, the district speed applies.

(3) 45 miles per hour upon all other paved, public roads in the parks, unless a different limit is prescribed for a particular road or roads by special regulation.

(4) Any speed in violation of the speeds designated in subparagraphs (2) and (3) of this paragraph shall be prima facie evidence of violation of subparagraph (1) of this paragraph.

(Sec. 3, 39 Stat. 535, as amended; 16 U. S. C. 3)

FRED A. SEATON,
Secretary of the Interior.

JUNE 21, 1956.

[F. R. Doc. 56-5102; Filed, June 27, 1956; 8:49 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[Rules, Amdt. 2-22]

PART 2—FREQUENCY ALLOCATIONS AND RADIO TREATY MATTERS; GENERAL RULES AND REGULATIONS

MISCELLANEOUS AMENDMENTS

At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 13th day of June 1956;

The Commission having under consideration promulgation of a new Part 21, Rules Governing Domestic Public Radio Services (other than Maritime Mobile), and the need for effecting, simultaneously, certain editorial changes in Part 2 of its rules so as to conform the latter part to the former; and

It appearing that such revisions in Part 2 of the rules are interpretative and editorial in nature and that Notice of Proposed Rule Making therefor is not required, as provided in section 4 (a) of the Administrative Procedure Act; under authority of sections 4 (i) and 303 of the Communications Act of 1934, as amended;

It is ordered, That, the changes in Part 2 of the rules as set forth below are adopted effective September 4, 1956.

(Sec. 4, 48 Stat. 1066, as amended; 47 U. S. C. 154. Interprets or applies sec. 303, 48 Stat. 1082, as amended; 47 U. S. C. 303)

Released: June 20, 1956.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

Amendments To Part 2, Frequency Allocation And Radio Treaty Matters: General Rules and Regulations:

1. In § 2.1 *Definitions*, amend the definition "Domestic fixed public service" to read as follows:

Domestic fixed public service. A fixed service, the stations of which are open to public correspondence, for radiocommunication between points all of which lie within: (a) the 48 states and the District of Columbia, or (b) within a single territory or possession of the United States. In cases where service is afforded on frequences above 30 Mc, facilities within the United States for communication with facilities in Canada or Mexico and facilities for communication between United States territories and possessions in the Carribbean area are also deemed to be in the domestic Fixed Public Service.

2. In § 2.104 (a) (5), amend footnote "NG5" to read as follows:

(NG5) Fixed stations in the Domestic Fixed Public Service and control stations in the Domestic Public Radio Services may be authorized to use any of the frequencies in the band 72-76 Mc indicated in column 10, on the conditions that (a) harmful interference will not be caused to the reception of television stations on channels 4 or 5 and (b) that harmful interference will not be caused to operational fixed stations.

[F. R. Doc. 56-4969; Filed, June 27, 1956; 8:45 a. m.]

[Docket No. 10821; FCC 56-553]

[New Part 21; Rules Amdt. 6-8]

PART 6—PUBLIC RADIOCOMMUNICATION SERVICES (OTHER THAN MARITIME MOBILE)

PART 21—DOMESTIC PUBLIC RADIO SERVICES (OTHER THAN MARITIME MOBILE)

In the matter of promulgation of Part 21, rules governing domestic public radio services.

1. On December 29, 1953, the Commission released a Notice of Proposed Rule Making in the above-entitled matter. The Notice of Proposed Rule Making was published in the FEDERAL REGISTER on January 7, 1954, and the time allowed for filing comments, which was extended to April 26, 1954, upon notice in the FEDERAL REGISTER on March 2, 1954, has expired. The purpose of the proposed rules is to delete from Part 6 of the rules those provisions which relate to domestic radio services (§ 6.101, et seq., to end of Part 6) and to transfer such provisions, with certain amendments and additions, to a new part designated as Part 21. This new part sets forth the rules and regulations applicable to all domestic common carrier radio services other than Aeronautical, Maritime, and certain Alaskan and Special Emergency Services. Thus, the new part contains rules for the regular operation of such communications common carrier services as Land Mobile, and those operations heretofore described as Experimental, which included Microwave Relay, Short Haul Toll, Rural Radiotelephone, TV Pickup, TV-STL, Domestic Control, Repeater, etc., which were authorized under the provisions of Part 5 of the Commission's rules.

2. Comments directed to the matters involved in this rule-making proceeding were received from, or in behalf of, the following parties: Aircall, Inc.; Aircall-Chicago, Inc.; Alexander's Answering Service; All America Cables and Radio, Inc.; American Telephone and Telegraph Company; Anderson, W. L.; Central Committee On Radio Facilities of the American Petroleum Institute; Citizens Utilities Company; Cook, Donald R.; Crane Lake Telephone Company; Duluth, Missabe and Iron Range Railway Company; Federal Telephone and Radio Company; General Electric Company; Hav-A-Call, Inc.; Hawaiian Telephone Company; Lenkurt Electric Company, Inc.; McKean, Farrell A.; Minnesota Telephone Association, Inc.; Mitchell, Oliver C.; Motorola, Inc.; National Mobile Radio System; Peninsular Telephone Company; Porto Rico Telephone Company; Radio Corporation of America; Radio Corporation of Porto Rico; Radio Dispatch Service of Rochester, Inc.; Radio-Electronics-Television Manufacturers Association; Riggs, Kenneth A.; Rural Electrification Administration; Schiller, Solomon; Special Industrial Radio Service Association; Stromberg-Carlson Company; Telanserphone, Inc.; Telesecretarial Service, Inc.; Tidewater Telephone Company; The Western Union Telegraph Company; WKY Radiophone Company.

3. None of the above-named persons requested that a hearing be held to resolve the points of contention set forth in their comments. However, the Central Committee on Radio Facilities of the American Petroleum Institute and the Special Industrial Radio Service Association requested that finalization of the proceeding in Docket No. 10821 concerning use of frequencies above 890 Mc be delayed until after finalization of the proceedings in related Docket Nos. 10315, 10345 and 10797. The comments relative to Docket Nos. 10315 and 10345 are now moot inasmuch as the proceedings therein were finalized on June 30, 1954 and August 4, 1954, respectively, by Reports and Orders of the Commission. In accordance therewith, appropriate provisions have been incorporated into Part 21. In our opinion, the pendency of certain proposals in Docket No. 10797, which proposes to amend Part 2 frequency allocations above 890 Mc, and in Docket No. 11442 which proposed ISM use of 915 MC in accordance with the provisions of Part 18 of our rules, which are the subjects of substantial contention, does not justify delay in acting in the instant proceeding which will establish the Domestic Public Radio Services in Part 21 on a regular service basis upon the frequencies presently available to such common carrier operations under the existing table of frequency allocations. If, and when, any change is effected in those allocations, appropriate changes will be made in Part 21. The magnitude of domestic common carrier fixed radio operations has achieved such proportions that the "experimental" aspects have long since disappeared and the licensing of such facilities under Part 5 of the Commission's rules governing the experimental radio services should be terminated as soon as practicable.

4. Part 21 will, for the first time, set forth in a consolidated publication the various provisions relating to the domestic use of radio by communications common carriers. It is also anticipated that the removal of the fixed station operations from an "experimental" category